

Terms and Conditions — Payscribe Nigeria

Entity: Pscribe Digital Services Limited (RC1946239) Last updated: [DATE] — Version 3.0
(redline correcting v2.0)

1. Who We Are

These Terms and Conditions ("Terms") govern your access to and use of the services, platform, website, and applications provided by **Pscribe Digital Services Limited**, a private limited company incorporated in the Federal Republic of Nigeria under company number **RC1946239**, with its registered office at **95 Oreta Road, Igbogbo, Ikorodu, Lagos, Nigeria** ("Payscribe Nigeria", "we", "us").

By accessing or using the Payscribe platform in Nigeria - including our website at www.payscribe.co, our web application at app.payscribe.ng, and any related mobile applications (collectively the "Platform") - you agree to be bound by these Terms.

If you do not agree with any part of these Terms, you must stop using the Platform immediately.

Note on scope: These Terms apply to users accessing services through Pscribe Digital Services Limited in Nigeria. Users in the United Kingdom are governed by the separate Payscribe Limited Terms and Conditions.

2. Our Relationship with Payscribe Limited

Pscribe Digital Services Limited is an **independent third-party technology infrastructure provider**, operating under an outsourcing/services agreement with Payscribe Limited (a company registered in England and Wales, Company No. 17196544). Pscribe Digital Services Limited is not a subsidiary, branch, or affiliate of Payscribe Limited. The two companies are separately owned, separately regulated in their respective jurisdictions, and operate under a shared "Payscribe" brand pursuant to technology service agreement.

3. Regulatory Status

Pscribe Digital Services Limited operates in compliance with applicable Nigerian financial services regulations, including guidelines issued by the Central Bank of Nigeria (CBN) and the Nigerian Financial Intelligence Unit (NFIU) as they apply to our business activities.

This section will be updated as our regulatory status changes. Always refer to the latest version of these Terms for our current status.

4. Eligibility

To use the Platform, you must:

- Be at least **18 years of age**
- Have the legal capacity to enter into a binding contract
- Not be a resident of a jurisdiction where the use of our services is prohibited by law
- Comply with all applicable laws and regulations in your jurisdiction

If you are using the Platform on behalf of a business or organisation, you represent and warrant that you have the authority to bind that entity to these Terms.

5. Account Registration

5.1 Creating an Account

To access certain features, you must register for an account and provide accurate, current, and complete information. You agree to update your information promptly if it changes.

5.2 Identity Verification

As a regulated financial services business, we are legally required to verify your identity before providing services. You authorise us (directly or through third-party providers) to conduct identity verification, KYC (Know Your Customer), and KYB (Know Your Business) checks. This may include:

- Verifying government-issued identification documents
- Screening against sanctions and PEP (Politically Exposed Persons) lists
- Verifying business registration and ownership details
- Conducting ongoing monitoring as required by anti-money laundering legislation

Failure to provide satisfactory verification may result in restricted or suspended access to the Platform.

5.3 Enhanced Due Diligence and Suspected Fraud

Where we reasonably suspect that your account, transactions, or business activity may be fraudulent, linked to money laundering, or otherwise in breach of these Terms, we may, in addition to our standard KYC/KYB checks:

- Request further information and documentation regarding your shareholders, ultimate beneficial owners, and corporate structure, including where ownership changes since onboarding
- Require you to provide additional indemnities in our favour as a condition of continued access to the Platform, restoration of a suspended account, or release of held funds
- Suspend or restrict your account pending completion of this enhanced due diligence, in accordance with §17 (Suspension and Termination)

You agree to cooperate promptly and in good faith with any such request. Failure to provide the requested information or indemnity within a reasonable time we specify may result in continued suspension or termination of your account.

5.4 Account Security

You are solely responsible for maintaining the confidentiality of your login credentials and for all activity that occurs under your account. You must:

- Use a strong, unique password
- Not share your credentials with any third party
- Notify us immediately at security@payscribe.co if you suspect unauthorised access to your account

We will never ask you for your password by email, phone, or any other unsolicited communication.

6. Business-as-a-Service Agreement

If you are onboarding as a business customer, you will be required to execute a separate **Business-as-a-Service ("BaaS") Agreement** with us as part of onboarding, setting out the specific services, service levels, integration terms, and commercial terms applicable to your account.

Where there is a conflict between these Terms and your BaaS Agreement, the BaaS Agreement shall prevail in respect of the specific matters it addresses; these Terms continue to apply to all other matters, including your obligations under §5 (Account Registration), §10 (Unauthorised Transactions and Disputes), §11 (Prohibited Activities), and §13 (Limitation of Liability).

7. Our Services

Pscribe Digital Services Limited provides a financial technology infrastructure platform that may include, depending on your account type:

- Payment processing and money transmission

- Foreign exchange and multi-currency operations
- Virtual card issuance
- Business payment APIs and infrastructure
- Bill payments and collections

We reserve the right to modify, suspend, or discontinue any service at any time, with reasonable notice where possible.

8. Payments, Fees, and Pricing

8.1 Fees. Fees for using the Platform are set out on our website or disclosed to you at the point of transaction. Fees are subject to change. We will provide reasonable advance notice of material fee changes.

8.2 Taxes. All fees are exclusive of any applicable taxes, levies, or duties. You are responsible for any taxes applicable to your use of the Platform.

8.3 Payment Authorisation. By initiating a transaction on the Platform, you authorise us to process that transaction on your behalf. You are responsible for ensuring sufficient funds are available.

9. Refunds and Cancellations

9.1 Business Users. For business accounts, our fees are generally non-refundable once a transaction has been processed, except where a transaction has failed due to an error on our part, in which case we will refund the transaction amount in full.

9.2 Consumer Users. Your statutory rights as a consumer under Nigerian law are not affected by these Terms, including rights under the Federal Competition and Consumer Protection Act (FCCPA) 2018, the CBN Consumer Protection Framework, and the CBN Guidelines on Electronic Banking.

9.3 Failed Transactions. Where a payment fails due to technical error on our part, we will endeavour to reverse or refund the transaction within **5 business days**. Where the failure is attributable to a third party (e.g. a receiving bank), resolution timelines may vary.

10. Unauthorised Transactions and Disputes

10.1 Reporting. If you believe an unauthorised transaction has been made on your account, notify us as soon as reasonably possible at hello@payscribe.co.

10.2 Investigation Process. On receiving a dispute, we will acknowledge your report within **2 business days**, investigate promptly and in good faith, and provide a resolution or update

within **15 business days** (or up to **35 business days** in exceptional circumstances). This is consistent with CBN dispute resolution guidelines.

10.3 Transaction Disputes. You may dispute unauthorised or erroneous transactions within **90 days** of the transaction date by contacting hello@payscribe.co with the transaction details.

11. Prohibited Activities

You must not use the Platform for:

- Any illegal, fraudulent, or unauthorised activity
- Money laundering, terrorist financing, or sanctions evasion
- Processing payments for prohibited goods or services
- Circumventing our AML, KYC, or fraud prevention controls
- Exploiting technical errors or vulnerabilities for financial gain
- Manipulating foreign exchange rates or transaction systems
- Using virtual cards for fraudulent or chargeback abuse purposes
- Impersonating any person or entity
- Uploading or transmitting malware or malicious code
- Any activity in violation of CBN foreign exchange regulations, the Money Laundering (Prevention and Prohibition) Act 2022, or NFIU reporting obligations

Breach of this clause may result in immediate account suspension, termination, legal action, and reporting to relevant regulatory and law enforcement authorities, and may trigger the enhanced due diligence and indemnity requirements set out in §5.3.

12. Intellectual Property

All content, software, designs, trademarks, logos, and technology on the Platform that is owned by Pscribe Digital Services Limited remains our property or that of our licensors. Nothing in these Terms grants you any rights to use our intellectual property other than to access and use the Platform in accordance with these Terms.

You must not copy, reproduce, distribute, or create derivative works from any part of the Platform without our prior written consent.

13. Limitation of Liability

13.1 To the fullest extent permitted by Nigerian law, Pscribe Digital Services Limited shall not be liable for:

- Indirect, incidental, special, consequential, or punitive damages
- Loss of profits, revenue, or anticipated savings

- Loss of data or business interruption
- Damages arising from third-party actions, including receiving banks or payment networks

13.2 Our total liability to you in connection with the Platform shall not exceed the greater of:

- The total fees paid by you to us in the **3 months** immediately preceding the event giving rise to the claim, or
- **₱1,000,000.00**

13.3 Nothing in these Terms limits or excludes our liability for death or personal injury caused by our negligence, or for fraud or fraudulent misrepresentation.

14. Indemnification

14.1 General Indemnity. You agree to indemnify, defend, and hold harmless **Pscribe Digital Services Limited** and its directors, officers, employees, and contractors from and against any claims, liabilities, damages, losses, costs, or expenses (including reasonable legal fees) arising from:

- Your use of the Platform in violation of these Terms
- Your violation of any applicable law or regulation
- Any content or information you submit through the Platform
- Any dispute between you and a third party arising from your use of the Platform

14.2 Additional Indemnity on Suspected Fraud. Where §5.3 applies, you agree to provide such additional indemnity as we may reasonably require, in a form specified by us, covering losses we incur as a result of the suspected fraudulent, unlawful, or non-compliant activity, pending the outcome of our investigation. This is in addition to, and does not replace, the general indemnity at §14.1.

15. Force Majeure

We will not be liable for any failure or delay in performing our obligations under these Terms where such failure or delay results from circumstances beyond our reasonable control, including acts of God, natural disasters, war, civil unrest, government action, regulatory changes, power outages, or internet service disruptions.

16. Third-Party Links and Services

The Platform may contain links to third-party websites or integrate with third-party services. We do not endorse and are not responsible for the content, practices, or privacy policies of any third parties.

17. Suspension and Termination

17.1 By Us. We may suspend or terminate your access to the Platform at any time where we reasonably suspect a breach of these Terms, where required by law or regulatory obligation, where required by a competent authority, or where we reasonably suspect fraudulent, illegal, or harmful activity (including pending the outcome of enhanced due diligence under §5.3). We will provide advance notice where legally and operationally possible.

17.2 By You. You may close your account at any time by contacting hello@payscribe.co. Closure will not affect any rights or obligations that arose prior to termination.

17.3 Closure During Suspected Fraud Investigations. Where your account has been suspended under §17.1 on grounds of reasonably suspected fraud, money laundering, or other breach of these Terms, you may not close your account to end that suspension. Your account will remain suspended, and closure will not be actioned, until:

- our investigation under §5.3 is complete, and
- any additional indemnity we have required under §14.2, and any other outstanding obligation arising from the investigation, has been satisfied.

This does not extend our right to hold your account beyond what is reasonably necessary to complete the investigation, and does not affect any statutory right you may separately have to close your account under applicable Nigerian law.

18. Complaints

We take complaints seriously. Contact us:

Email: hello@payscribe.co **WhatsApp:** +234 703 806 7493 **Post:** Pscribe Digital Services Limited, 95 Igbogbo, Ikorodu, Lagos, Nigeria

We will acknowledge your complaint within **2 business days** and aim to provide a full response within **15 business days**. If unresolved, you may escalate to the Consumer Protection Department of the CBN. For formal legal proceedings, the courts of Lagos State, Nigeria have jurisdiction.

19. Changes to These Terms

We may update these Terms from time to time. We will notify you of material changes by posting the updated Terms on our website and, where appropriate, by email. Your continued use of the Platform after the effective date of any changes constitutes acceptance of the revised Terms.

20. Governing Law and Jurisdiction

These Terms are governed by and construed in accordance with the laws of the **Federal Republic of Nigeria**. Any dispute, claim, or controversy arising out of or in connection with these Terms shall be subject to the **exclusive jurisdiction of the courts of Lagos State, Nigeria**, except where applicable Nigerian consumer protection law entitles you to bring proceedings elsewhere.

21. Language

These Terms are provided in English, the official language of Nigeria and the language of legal effect for Nigerian users.

22. Severability

If any provision of these Terms is found to be unenforceable or invalid, that provision shall be limited or eliminated to the minimum extent necessary so that these Terms otherwise remain in full force and effect.

23. Entire Agreement

These Terms, together with our Privacy Policy and Cookie Policy, and, where applicable, your BaaS Agreement, constitute the entire agreement between you and Pscribe Digital Services Limited in relation to your use of the Platform and supersede all prior agreements and understandings.

24. Contact Us

Email: compliance@payscribe.co **Post:** Pscribe Digital Services Limited, 95, Igbogbo, Ikorodu, Lagos, Nigeria